

Chandra Bhushan Prasad vs Lilly Prasad on 8 August, 2023

Author: Rongon Mukhopadhyay

Bench: Rongon Mukhopadhyay, Deepak Roshan

IN THE HIGH COURT OF JHARKHAND AT RANCHI

First Appeal No. 291 of 2019

Chandra Bhushan Prasad

..... Appellant

Versus

Lilly Prasad

..... Respondent

CORAM: Hon'ble Mr. Justice Rongon Mukhopadhyay Hon'ble Mr. Justice Deepak Roshan

For the Appellant : Mr. Anjani Nandan, Advocate For the Respondent : Ms. Kavita Singh, Advocate

04/08.08.2023 Heard Mr. Anjani Nandan, learned counsel appearing for the appellant and Ms. Kavita Singh learned counsel appearing for the respondent.

2. This appeal is directed against the order dated 21.08.2019 passed in Original Suit No. 170 of 2018 by Shree Peeyush Kumar, learned Principal Judge, Family Court, Bokaro, whereby and whereunder the suit preferred by the appellant under Section 9 of Hindu Marriage Act, 1955 for restitution of conjugal rights, has been dismissed.

3. It is not in dispute that the marriage of the appellant was solemnized with the respondent on 27.1.1995 as per Hindu rites and customs and out of their wedlock on 24.2.1997 a child was born. It is also not in dispute that the respondent had stayed at her matrimonial house for few months and had also filed Title (Matrimonial) Suit No. 26 of 2013 against the appellant for dissolution of marriage which was, however, dismissed in the year 2018 against which respondent herein had preferred an appeal before this Court. Evidences were led and only on account of the fact that an appeal against the judgment by which the suit preferred by the respondent herein for dissolution of marriage was dismissed, the present suit for restitution of conjugal rights was also dismissed. There is no discussion with respect to evidences adduced on behalf of both sides and only on account of the fact as noted above, the suit preferred by the appellant herein has been dismissed.

4. In view of the fact that the appeal being First Appeal No. 55 of 2018 has been decided by us and we have affirmed the order passed by learned Principal Judge, Family Court, Bokaro, there is no impediment, for the present for learned Principal Judge Family Court, Bokaro to decide the suit for restitution of conjugal rights under Section 9 of Hindu Marriage Act, 1955 afresh.

5. In view of the above, therefore, while setting aside the order dated 21.08.2019 passed in Original Suit No. 170 of 2018 by Shree Peeyush Kumar, learned Principal Judge, Family Court, Bokaro, the matter is remitted back to learned Principal Judge, Family Court, Bokaro to pass fresh order, in accordance with law, after giving an opportunity of hearing to both the sides.

In view of the observations made hereinabove, the instant appeal stands disposed of.

(Rongon Mukhopadhyay, J.) (Deepak Roshan, J.) JK